

Court No. - 9

Case :- WRIT - C No. - 36283 of 2015

Petitioner :- M/S Maa Vindhya Vasini Stone Works And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Ors.

Counsel for Petitioner :- Mayank Agrawal, Madan Lal Srivastava

Counsel for Respondent :- C.S.C., Krishna Agrawal

Hon'ble Arun Tandon, J.

Hon'ble Ashwani Kumar Mishra, J.

Only an attempt is being made to mislead the Court by making allegations, which are totally unfounded. The petitioner before this Court is admittedly faced with bills dated 3rd October, 2014, disclosing a total sum payable as Rs. 24,12,707/-, as also against the demand notice issued under Section 3 of the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1957, for a like amount (reference of Pages 71 and 73 of the paper book).

Counsel for the petitioner initially made an attempt to suggest before this Court that he has objected to the excessive demand being raised by the department, even when there has been no consumption of electricity, and for the purpose he referred to the document, enclosed at Page 57 of the paper book, dated 10th July, 2014. From a reading of the complaint, we find that averments therein do not make a mention of any excessive demand being raised from the petitioner. In any view of the matter, the correctness or otherwise of the bills, which has lastly been issued to the petitioner on 3rd October, 2014, as well as the recovery certificate issued can be subjected to challenge with reference to the provisions contained in Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005.

Writ petition, in the facts of the present case, is not the proper remedy. If the petitioner claims any benefit on the ground of it being a new unit and is aggrieved against the bills, it can always raise grievance while challenging the quantification of amount in the bills impugned.

The writ petition is accordingly dismissed.

Order Date :- 3.7.2015

Anil

(Ashwani Kumar Mishra, J.) (Arun Tandon, J.)